

Court No. - 36

Case :- WRIT - C No. - 74215 of 2010

Petitioner :- Santosh Kumar Sharma

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Sanjay Kumar Singh

Respondent Counsel :- C.S.C.,Mridul Tripathi

Hon'ble Ashok Bhushan,J.

Hon'ble Shyam Shankar Tiwari,J.

Heard learned counsel for the petitioner, learned Standing Counsel for the respondents no.1 and 4 and Mridul Tripathi for the respondent nos.2 and 3.

Learned counsel for the petitioner contends that the provisional assessment dated 22.12.2008 was issued for an amount of Rs.553442/- on the basis of checking dated 16.12.2008. Petitioner had earlier filed a writ petition no.3889 of 2009 which was disposed of directing the respondent no.2 to take final decision on the objection filed by the petitioner on the final assessment. Petitioner's case is that he wanted to deposit the same which was not accepted. However, subsequently on 4.5.2009 he was permitted to deposit the entire amount in cash. He submits that prior to above contempt proceedings were initiated in which contempt notice were issued to Executive Engineer and Managing Director. He submits that a letter dated 14.3.2009 is claimed to be issued deciding the objection which was never served to the petitioner .He submits that order dated 14.3.2009 for deciding the objection of the petitioner is also not an order of considering the entire objections. He raised various objections including objection in para 10(Ka to Cha). The respondents has decided only objection of paragraph 10-Ka.

Mridul Tripathi appearing for the respondent submitted that the amount has been doubled in accordance with the provisions of paragraph 8.1(b) (iv) of the U.P. Electricity Supply Code 2005. She further submits that the cheques which were given by the petitioner were dishonored. Hence the amount has been made twice.

Petitioner further submits that the action of the respondent is biased on account of filing of contempt petition. Petitioner further submits that all objections have also not been decided on account of malafide intention on the part of the respondent. Submission needs scrutiny.

Let a counter affidavit be filed within three weeks. Rejoinder affidavit may be filed within one week.

List this petition on 24.1.2011.

In the mean time, no recovery shall be made against the petitioner in pursuance of the demand notice dated 10.7.2010(Annexure-14 to the writ petition).

Order Date :- 23.12.2010
Hsc/

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Hon'ble Ashok Bhushan, J.

Hon'ble Shyam Shankar Tiwari, J.

No counter affidavit has been filed . Time allowed earlier has expired. Three weeks further time is allowed to file counter affidavit.

List thereafter.

Interim order to continue.

Order Date :- 31.1.2011

Hsc/

Court No. - 40

Case :- WRIT - C No. - 74215 of 2010

Petitioner :- Santosh Kumar Sharma

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- Sanjay Kumar Singh

Counsel for Respondent :- C.S.C., Mridul Tripathi

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Shashi Kant, J.

Sri Sanjay Kumar Singh, learned counsel for the petitioner has sent his illness slip today.

List in the next cause list.

Order Date :- 28.5.2018

A. Verma

Court No. - 38

Case :- WRIT - C No. - 74215 of 2010

Petitioner :- Santosh Kumar Sharma

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- Sanjay Kumar Singh

Counsel for Respondent :- C.S.C., Mridul Tripathi

Hon'ble Abhinava Upadhya, J.

Hon'ble Shashi Kant, J.

Passed over on the request made on behalf of Sri Sanjay Kumar Singh, learned counsel for the petitioner.

Order Date :- 9.7.2018

Monika

(Shashi Kant, J.) (Abhinava Upadhya, J.)

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Respondent :- State Of U.P. And Others

Counsel for Petitioner :- Sanjay Kumar Singh

Counsel for Respondent :- C.S.C., Mridul Tripathi

Hon'ble Abhinava Upadhya, J.

Hon'ble Chandra Dhari Singh, J.

List has been revised. None is present for the petitioner to press this writ petition.

The writ petition is, accordingly, dismissed in default. Interim order, if any, stands vacated.

Order Date :- 23.7.2018

Prajapati

[Chandra Dhari Singh, J] [Abhinava Upadhya, J]